In *Common Cause* case[4b] (1999), the Supreme Court again examined the whole doctrine and rejected the sovereign immunity rule. The Court held that the rule of State liability as laid down in *P and O Steam Navigation Company* case is very outmoded. It said that in modern times when the State activities have been considerably increased it is very difficult to draw a line between its sovereign and non-sovereign functions. The increased activities of the State have made a deep impression on all facets of citizens' life, and therefore, the liability of the State must be made co-extensive with the modern concept of a welfare State. The State must be liable for all tortuous acts of its employees, whether done in exercise of sovereign or non-sovereign powers[4c]. Finally, the court observed that the efficacy of *Kasturilal* case as a binding precedent has been eroded.

In the *Prisoner's Murder* case[4d] (2000), the Supreme Court ruled that in the process of judicial advancement *Kasturilal* case has paled into insignificance and is no longer of any binding value.

SUITS AGAINST PUBLIC OFFICIALS

1. President and Governor

The Constitution confers certain immunities to the president of India and governor of states with regard to their official acts and personal acts. These are:

(a) Official Acts The president and the governors cannot be sued during the term of their office or thereafter, for any act done by them in the exercise and performance of their official powers and duties. However, the official conduct of the president can be reviewed by a court, tribunal or any other body authorised by either House of Parliament to investigate charges for impeachment. Further, the aggrieved person can bring appropriate proceedings against the Union of India instead of the president and the state instead of the Governor of that state.

(b) Personal Acts No criminal proceedings can be started against the president and the governors in respect of their personal acts nor can they be arrested or imprisoned. This immunity is limited to the period of the term of their office only and does not extend beyond that. However, civil proceedings can be started against them during their term of office in respect of their personal acts after giving two months' advance notice.

2. Ministers

The Constitution does not grant any immunity to the ministers for their official acts. But, since they are not required to countersign (as in Britain) the official acts of the president and the governors, they are not liable in the courts for those acts[5]. Moreover, they are not liable for the official acts done by the president and the governors on their advice as the courts are debarred from inquiring into such advice. However, the ministers do not enjoy any immunity for their personal acts, and can be sued for crimes as well as torts in the ordinary courts like common citizens.

3. Judicial Officers

The judicial officers enjoy immunity from any liability in respect of their official acts and hence, cannot be sued. The Judicial Officers Protection Act (1850) lays down that, 'no judge, magistrate, justice of peace, collector or other person acting judicially shall be liable to be sued in any civil court for any act done by him in the discharge of his official duty'.

4. Civil Servants